

24NWCV00212 24NWCV00212

County: los-angeles

Division: Civil Law and Motion

Department: R

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ARCHILA. v. AMERICAN HONDA MOTOR
CO., INC.

CASE NO.: 24NWCV00212

HEARING: Thursday, August 13, 2026, at 9:30 AM

Defendant AMERICAN HONDA MOTOR CO., INC.'S Motion to Compel
Plaintiff's Production of the Subject Vehicle for Inspection is GRANTED.

Moving Party to give notice.

Background

On January 22, 2026, Plaintiff SANDRA ARCHILA ("Plaintiff") filed this
lemon law action against Defendants AMERICAN HONDA MOTOR CO., INC. ("Defendant"
or "AHM") and DOES 1 through 10, inclusive.

Defendant now moves to compel Plaintiff to produce the Subject Vehicle
for inspection.

Motions to Compel

"Any party may obtain discovery . . . by inspecting, copying, testing,
or sampling documents, tangible things, land or other property, and
electronically stored information in the possession, custody, or control of any

other party to the action.” (Code Civ. Proc., § 2031.010, subd. (a).)

“Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand, and a copy of the response on all other parties who have appeared in the action, unless on motion of the party making the demand, the court has shortened the time for response.” (Code Civ. Proc., § 2031.260, subd. (a).)حح

If a party to whom demands for inspection are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).)

On February 25, 2024, Defendant served a Notice of Deposition for a vehicle inspection, setting inspection on April 15, 2024. (Haumschild Decl., ¶ 4 Ex. A.) Defendant then served an Amended Notice of Deposition on May 22, 2024, rescheduling the vehicle inspection for August 20, 2024. (Haumschild Decl., ¶ 6, Ex. C.)

On January 26, 2026, AHM proposed an August 19, 2026, inspection date. (Haumschild Decl., ¶¶ 14-16, Ex. G.) On February 28, 2026, AHM informed Plaintiff's counsel that the August date was no longer available and offered September 28, 2026, instead. (Haumschild Decl., ¶ 17, Ex. G.) On March 10, 2026, AHM notified Plaintiff's counsel that the September date was no longer available. (Haumschild Decl., ¶ 19, Ex. G.)

The Court finds the parties have been unable to determine a date for the vehicle inspection for over two years. Accordingly, Defendant's Motion to Compel Vehicle Inspection is GRANTED.

The parties shall meet and confer to determine the date of the vehicle inspection. Plaintiff shall produce the Subject Vehicle within twenty (20) days of this Court's Order.

Sanctions

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party. . .who unsuccessfully makes or opposes a motion to compel a response toحا demand for inspection,

copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).)

The Court finds sanctions are not warranted as Defendant set and canceled the last inspection date. Moreover, Defendant has not offered any new dates for the inspection. The Court finds that the issue here is that the parties have been unable to meaningfully meet and confer to select an inspection date.

Thus, sanctions are not imposed.